

25NNCV07586 25NNCV07586

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Case Number: 25NNCV07586 Hearing Date: July 15, 2026 Dept: E

Case No: 25NNCV07586

Hearing Date: 07/15/2026 – 8:30 a.m.

Trial Date: 11/30/2026

Case Name: VICTORIYA BALASANOVA,

et al. v. LAUREL 5807 LP, a California Limited Partnership, et al.

TENTATIVE RULING ON
MOTION TO STRIKE

PROCEDURAL

Moving Party: Defendants – (1) Laurel 5807 LP; (2) Laurel 5807
Managers LLC; (3) Cirrus Asset Management, Inc.; and (4) Yale Management
Services, Inc. (Defendants or Movants)

Responding Party: Plaintiffs – (1) Victoriya Balasanova; (2) Sergey
Zargaryan; (3) Jessica Zargaryan, a minor by and through her Guardian Ad Litem
Victoriya Balasanova; (4) Rowan Hage; (5) Alice Paige Smith; (6) Madara
Jayasena; (7) Ionie Bernstein; (8) Angela Norwood; and (9) Victor Esguerra

Moving Papers: Motion to
Strike; Proposed Order

Opposition Papers: Opposition;
Kevin Lipton Declaration; Opposition; Proposed Order

Reply Papers: No reply
submitted

Meet and Confer

“Before

filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion to strike the amended pleading.” (CCP, § 435.5(a).)

“A

determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (CCP, § 435.5(a)(4).)

Here, Defendants’ counsel met and conferred.
(See Arushanyan Decl., ¶¶ 2-8.)

RELIEF REQUESTED

Defendants move to strike the following portions of Plaintiffs’
Complaint:

1. Page

17, lines 2-4, as it fails to conform to the laws of the state pursuant to
California Code of Civil Procedure §436(a) and (b);

2.

Page 17, lines 11-19, as it fails to conform to the laws of the state pursuant
to California Code of Civil Procedure §436(a) and (b);

3. Page 20, lines 22-24, as it fails

to conform to the laws of the state pursuant to California Code of Civil
Procedure §436(a) and (b);

4. Page 21, lines 8-11, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
5. Page 22, lines 12-16, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
6. Page 27, lines 14-17, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
7. Page 29, lines 1-4; as fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
8. Page 30, lines 3-5, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
9. Page 31, line 23-26, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
10. Page 34, lines 1-4, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
11. Page 34, lines 13-21, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
12. Page 34, lines 13-21, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
13. Page 38, lines 12-14, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
14. Page 40, lines 8-11, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
15. Page 47, lines 16-19, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);
16. Page 48, lines 16-17, as it fails to conform to the laws of the state pursuant to California Code of Civil Procedure §436(a) and (b);

(Def.

Mot., p. 2-3.)

LEGAL STANDARD – MOTION TO STRIKE

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP,
§ 436.)

A motion to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or procedure. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528-29.)

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP, § 437; Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63 [“judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Further, CCP § 431.10(a)-(c) states as follows:

(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following:

(1) An

allegation that is not essential to the statement of a claim or defense.

(2) An

allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.

(3) A

demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An

“immaterial allegation” means “irrelevant matter” as that term is used in Section 436.

(CCP,

§ 431.10(a)-(c).)

TENTATIVE RULING

On 10/24/2025,

Plaintiffs – (1) Victoriya Balasanova; (2) Sergey Zargaryan; (3) Jessica Zargaryan, a minor by and through her Guardian Ad Litem Victoriya Balasanova; (4) Rowan Hage; (5) Alice Paige Smith; (6) Madara Jayasena; (7) Ionie Bernstein; (8) Angela Norwood; and (9) Victor Esguerra – filed the instant Complaint.

Plaintiffs' Complaint named the following

Defendants – (1) Laurel 5807 LP; (2) Laurel 5807 Managers LLC; (3) Cirrus Asset Management, Inc.; (4) Riverside Apartments LLC; (5) Circus Noho, Inc.; (6) Yale Management Services, Inc.; and (7) Does 1-25.

On 5/20/2026, Plaintiffs' counsel filed a

request for dismissal for Defendant, Circus Noho Inc., a California Corporation, and the request for dismissal indicates that dismissal was entered as requested on 5/20/2026. However, eCourt does not indicate that this defendant was dismissed, and instead eCourt indicates that this defendant was served on 1/26/2026. At the hearing, the parties are to address this discrepancy.

On 5/28/2026, Plaintiffs' counsel filed a request for dismissal for Defendant, Riverside Apartments LLC. a California Limited Liability Company, and the request for dismissal indicates that dismissal was entered on 5/28/2026. Further, eCourt indicates that this defendant was dismissed on 5/29/2026.

Plaintiffs' Complaint alleges the following causes of action:

- (1) Constructive Eviction;
- (2) Breach of the Covenant of Quiet Enjoyment;
- (3) Tortious Breach of Implied Warranty of Habitability;
- (4) Statutory Breach of Warranty of Habitability (Civ. Code §§ 1941, 1941.1, and 1942.4);
- (5) Breach of the Implied Covenant of Good Faith and Fair Dealing;
- (6) Breach of Contract;
- (7) Intentional Infliction of Emotional Distress;
- (8) Negligent Infliction of Emotional Distress;
- (9) Nuisance;
- (10) Unlawful, Fraudulent and Unfair Business Acts and Practice (Bus. & Prof. Code § 17200 et seq.);
- (11) Negligence;
- (12) Negligent Training and Supervision;
- (13) Negligent Maintenance of the Premises;
- (14) Harassment of Tenants (Civ. Code § 1940.2 & 1942.5);
- (15) Violation of the Los Angeles Rent Stabilization Ordinance;

(16) Failure to Return Security Deposit;

(17) Harassment in Violation of L.A.M.C. §45.33;

(18) Excessive Collection of Rent – L.A.M.C. §151.04, et seq.;

(19) Retaliatory Eviction (Los Angeles County Code § 8.52.130 and 8.53.180);

(20) Violation of California Civil Code Section §789.3;

(21) Toxic Environmental Mold Tort.

Generally speaking, Plaintiffs allege that they were tenants in Defendants' property. (Compl., ¶ 1.)

Plaintiffs allege that the property suffered from untenable living conditions such as lack of effective waterproofing and weather protection of roof, exterior walls, and leaks and broken windows and doors. (Compl., ¶ 31.)

Plaintiffs allege that Defendants continuously failed to meet the standard owed as described in Civil Code § 1942.2, and that Defendants had actual and/or constructive knowledge of the defective and dangerous substandard conditions, but willfully failed or refused, and continue to fail or refuse, to correct these standards. (Compl., ¶ 32.)

Defendants' motion to strike seeks to strike several paragraphs in Plaintiffs' Complaint relating to punitive damages.

Defendants argue that Plaintiffs do not plead a factual basis to support punitive damages.

Defendants argue that specific facts are not pled to support a finding of intentional, willful, malicious, fraudulent, or oppressive conduct.

The Court does not find Defendants' arguments availing.

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or

malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example by way of punishing the defendant. (Civ. Code, § 3294(a).)

“‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294(c)(1).)

“‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294(c)(2).)

“‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civil Code § 3294(c)(3).)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal. App. 4th 1253, 1255.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud, or malice. (Smith v. Sup. Ct. (1992) 10 Cal. App. 4th 1033, 1042.)

Here, when reading the allegations and the entirety of the Complaint, at the very least, Plaintiffs allege a sufficient basis for a jury to potentially find that Defendants’ conduct was malicious or oppressive.

Defendants’ motion to strike is
DENIED.